

child is now looked upon as a circumstance particularly favourable (*d*).

2. **Purchase of a reversionary estate.**—It was objected, that a *reversionary estate*, from the uncertainty of the time when it would fall into possession, was not such a kind of interest as a parent would prudently purchase by way of provision for a child; but mere proximity or remoteness of the enjoyment, whether the reversion be expectant on the decease of the parent or a stranger, has since been held clearly insufficient to countervail the general rule (*e*).

3. **Purchase in joint names of father and son.**—A purchase in the *joint* names of the father and son has met with objections; “for this,” observed Lord Hardwicke, “does not answer the purpose of an advancement, as it entitles the father to the possession of the whole till a division, and to a moiety absolutely even after a division, besides the [*172] father’s taking a chance to *himself of being a survivor of the other moiety: nay, if the son die during his minority, the father would be entitled to the whole by survivorship, and the son could not prevent it by severance, he being an infant” (*a*). But surely no improvidence can be justly charged on a parent who so settles his estate, that if the son die a minor it shall revert to himself; that until the marriage of the son or other pressing occasion, the father and son shall possess an equal interest during their joint lives, with the right of survivorship as to the whole; that the son shall have the power, when necessary, of settling one moiety of the estate, but shall leave the other moiety to his parent. Whatever opinion may be entertained as to the *principle*, the doubts above expressed by Lord Hardwicke can scarcely be maintained in opposition to repeated decisions (*b*). A purchase in the joint names of the son and a *stranger* is less favourable to the supposition of an intended

(*d*) Fearne’s P. W. 327.

(*e*) Rumboll v. Rumboll, 2 Eden, 17, *per* Lord Henley; Finch v. Finch, 15 Ves. 43; Murless v. Franklin, 1 Sw. 13.

(*a*) Stileman v. Ashdown, 2 Atk. 480; and see Pole v. Pole, 1 Ves. 76.

(*b*) Scroope v. Scroope, 1 Ch. Ca. 27; Back v. Andrews, 2 Vern. 120; Grey v. Grey, 2 Sw. 599, and cases there cited; Dummer v. Pitcher, 2 M. & K. 272.